<u>Court No. - 49</u>

Case :- CRIMINAL REVISION No. - 2144 of 2018

Revisionist :- Pawan Singh
Opposite Party :- State Of U.P. And Another
Counsel for Revisionist :- Subhash Gosain
Counsel for Opposite Party :- G.A.,Chandan Agarwal

<u>Hon'ble Saumitra Dayal Singh,J.</u>

Heard Sri Subhash Gosain, learned counsel for the applicant, Sri Chandan Agarwal, learned counsel for the opposite party no.2 as also learned AGA for the State.

The present revision is directed against the order dated 31.05.2018, by which the learned 1st Addl. District Judge (Special Court-Electricity Act), Gautam Budh Nagar has directed to pay up an amount of Rs. 26,63,854/- towards total dues for consumption of electricity as also for compounding as offence alleged against him.

In this regard, it appears that original provisional assessment being made against the applicant for consumption of electricity demand was Rs. 38,65,262/-. Subsequently, the aforesaid demand was amended on 21.03.2017, to Rs. 24,23,854/-.

Admittedly, the aforesaid revised demand was not challenged by the applicant in the procedure prescribed under Section 127 of the Electricity Act, 2003. It has then attained finality.

In the meanwhile, with respect to the prosecution that came to be lodged against the applicant, he questioned the same in Criminal Misc. Writ petition No. 4322 of 2018, which was disposed of vide order dated 4.4.2018 on the following terms:

"Considering the submissions made by learned counsel for the parties, the petitioner is directed to file an application within three weeks from today before the Magistrate concerned for settlement of dispute of electricity dues between the petitioner and Power Corporation. Learned Magistrate shall allow the proceeding for compounding the proceeding and shall pass appropriate orders within three weeks thereafter in accordance with law positively.

For a period of six weeks, no coercive action shall be taken against the petitioner.

With the above direction, this application is finally disposed of."

In compliance of the aforesaid order, the applicant appears to have filed an application seeking compounding of the criminal offence. That application has been disposed on 31.05.2018, requiring the applicant to deposit Rs. 24,23,854/- towards electricity dues and Rs. 2,40,000/- towards compounding fee being total Rs. 26,63,854/-.

Learned counsel for the applicant submits that while there is no error in computation of compounding fee, however, learned court below has erred in providing for deposit of Rs. 24,23,854/-inasmuch as that is a civil liability that had to be decided separately by the competent authority and not by the learned court below.

It is further stated that in any case the amount of Rs. 24,23,854/- is wholly excessive and arbitrary. Reliance has been placed on Clause 8.2 (vii) of the U.P. Electricity Supply Code, 2005 to submit that the electricity dues could not have exceeded one time of the existing tariff.

Sri Chandan Agrawal, learned counsel for the opposite party no.2 has relied on Section 154(5) of the Electricity Act, 2003 to submit that in such circumstance, the minimum amount to be charged for theft of energy could not be less than two times of the tariff rate applicable for a period of 12 months preceding the date of reduction of the energy. However, a higher determination could always be made.

He further submits that in any case under Section 154(5) of the Electricity Act, 2003, the Special Court is empowered to determine the civil liability of the consumer only where such determination has not been otherwise made. He then submits that by virtue of revised demand, the civil liability of the applicant had been determined at Rs. 24,23,854/-. Since that determination attained finality, there remained no dispute to be determined under Section 154(5) of the Electricity Act, 2003.

Having considered the arguments so advanced by learned counsel for the parties, it appears that in the first place, since the Special Court was fully empowered to make determination of the civil liability also (towards theft of electricity) there is no patent illegality in the impugned order insofar as it provides for such liability to be paid first as a condition to accept the compounding.

Then, it is difficult to accept the contention advanced by learned counsel for the applicant that the present proceedings could have been confined to criminal prosecution only and that the applicant should have been left to contest the demand for electricity dues separately.

Such argument is not acceptable in view of the clear language of Section 154(5) of the Electricity Act, 2003, which contemplates that in cases where the civil liability may not have been determined, the Special Court may determine the civil liability against the consumer.

In the facts and circumstances of the present case, it is seen that there was no determination required to be made by the Special Court under Section 154 (5) of the Act, inasmuch as admittedly, the applicant had earlier received a demand of electricity dues in the shape of provisional assessment for Rs. 38,65,262/-. Apparently, on the representation of the applicant, the aforesaid demand was amended on 21.03.2017, to Rs. 24,23,854/-. It is not disputed that the applicant did not challenge the said determination before any competent authority. As such that liability got crystallized in the revised assessment which has attained finality.

Once, it was not open to the applicant to question the determination of the civil liability in the pending proceeding for compounding, the applicability of Clause 8.2 of the U.P. Electricity Supply Code, 2005 would not arise.

In any case the said provision appears to stand in apparent contradiction with the statutory provision of Section 154(5) of the Electricity Act, 2003. Under the Act, the power has been given to the Special Court to make determination of civil liability. It has been provided that such liability would not be less than two times of the liability that may have existed for 12 months preceding the detection of the theft. Such criteria appears to be rational since Section 154(5) of the Electricity Act, 2003 applies in cases of theft and not to cases of normal consumption.

In view of the above, no interference is warranted in the present case. It is accordingly, **dismissed**.

Order Date :- 17.7.2018
Lbm/-